

Concepts, Inc., 197 Cal.App.4th at 934.)

In this motion, there is little to none of the required materials in the briefing in the scant three-page Memorandum of Points and Authorities. Plaintiff only cites to code sections 128.5 and 128.7, and not even to specific verbiage of the code sections. There are no citations to case law let alone discussions of case law, and no evidence is presented – only an assertion that evidence in support of the motion exists. (Webster Decl. ¶ 3.) The absence of legal authority and along with little to no factual or evidentiary support for the claimed relief, is enough to deny the motion.

Lack of Safe Harbor Period

Both CCP §§ 128.5 and 128.7 have a mandatory safe harbor provision where the Party intending to file for sanctions must serve the motion to the opposing side 21 days before filing it with the Court, allowing the other party to withdraw or correct the challenged document or conduct. (See CCP §§ 128.5(f) and 128.7(c)(2).) Plaintiff failed to demonstrate strict compliance with the mandatory safe harbor provision.

Conclusion

For the reasons analyzed above, **Plaintiff's Motion for Sanctions is denied.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

10. 9:00 AM CASE NUMBER: C24-00621
CASE NAME: LING TANDIAN VS. PRINCESS CRUISE LINES, LTD.
***HEARING ON MOTION IN RE: REQUEST FOR DISMISSAL**
FILED BY: TANDIAN, LING

TENTATIVE RULING:

Based on counsel's declaration, and without opposition, the **motion is granted.**

11. 9:00 AM CASE NUMBER: C24-01034
CASE NAME: TIYANA KIRBY VS. MAUREEN MICARIO MIRADOR
HEARING ON SUMMARY MOTION
FILED BY: MICARIO MIRADOR, MAUREEN

TENTATIVE RULING:

Before the Court is Defendant Maureen Micario Mirador ("Defendant" or "Mirador")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Tiyana Kirby ("Plaintiff" or "Kirby")'s complaint for damages arising out of an auto accident. Defendant moves for summary judgment on the grounds that Plaintiff's claims are barred by a settlement and release she executed on October 26, 2023.

For the following reasons, the MSJ is **granted.**

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for